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* **IN THE HIGH COURT OF DELHI AT NEW DELHI**

CNR No. DLHC010363642026

+ **CRL.M.C. 5773/2026**

MANISH BANSAL & ORS.

.....Petitioners

Through: Ms. Jyoti Sharma, Adv. with all
petitioners.

versus

THE STATE GOVT. OF NCT OF DELHI AND ANR.

.....Respondents

Through: Mr. Nawal Kishore Jha, APP with Ms.
Kalpana Jha and Mr. Siddharth
Shankar Jha, Advs.
SI Praveen Kumar
Mr. Rishabh Jain, Adv. for R-2 with R-
2.

CORAM:

HON'BLE MS. JUSTICE MADHU JAIN

ORDER

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10.08.2026

1. This hearing has been done through hybrid mode.

CRL.M.A. 24111/2026 (seeking exemption)

2. Allowed subject to all just exceptions. The application is disposed of.

CRL.M.C. 5773/2026

3. By way of the present petition filed under Section 528 of the Bharatiya
Nagarik Suraksha Sanhita, 2023 (hereinafter referred to as the 'BNSS') read
with Section 482 of the Code of Criminal Procedure, 1973, the petitioners
seek quashing of **FIR No. 0271/2024**, registered at Police Station Rani Bagh,
Delhi, under Sections 498A/406/34 of the Indian Penal Code, 1860
(hereinafter referred to as the 'IPC'), along with all consequential proceedings
arising therefrom, on the basis of an amicable settlement arrived at between



the parties.

4. Issue notice.
5. Learned APP for the State accepts notice on behalf of the State.
6. The petitioners and Respondent No. 2 are present before this Court and have been duly identified by the Investigating Officer concerned.
7. Briefly stated, the marriage between Petitioner No. 1 and Respondent No. 2 was solemnized on 23.02.2019 in accordance with Hindu rites and ceremonies at Goa. Out of the said wedlock, a daughter, namely Raavya, was born on 18.01.2020 and is presently residing with Respondent No. 2. Owing to matrimonial discord, the parties started residing separately from 25.01.2024. Thereafter, Respondent No. 2 lodged a complaint before the CAW Cell, Outer District, Pitampura, Delhi, which culminated in the registration of the present FIR. During the pendency of the proceedings, with the intervention of family members and friends, the parties amicably resolved all their disputes and executed a Memorandum of Understanding dated 13.05.2026, followed by an Addendum thereto dated 01.07.2026. Pursuant to the settlement, the marriage between the parties stands dissolved by a decree of divorce by mutual consent dated 22.07.2026 passed by the learned Principal Judge, North-West District, Rohini Courts, Delhi.
8. Learned counsel for the petitioners submits that in terms of the settlement, Petitioner No. 1 agreed to pay a total sum of ₹50,00,000/- (Rupees Fifty Lakhs only) to Respondent No. 2 towards full and final settlement of all her claims, including stridhan, maintenance (past, present and future), permanent alimony and all other ancillary claims. It is submitted that the entire settled amount has already been paid to Respondent No. 2 and nothing further remains payable by either party under the settlement.



9. On a query made by this Court, Respondent No. 2, who has been duly identified by the Investigating Officer, states that she has entered into the settlement voluntarily, of her own free will and without any force, coercion or undue influence. She further states that she has received the entire settled amount and has no surviving claim whatsoever against the petitioners. She has no objection if the present FIR and all proceedings emanating therefrom are quashed.

10. In view of the fact that the parties have amicably resolved all their disputes, the marriage already stands dissolved by a decree of divorce by mutual consent, the entire settlement amount has been paid, and Respondent No. 2 has no objection to the quashing of the FIR, no useful purpose would be served in continuing the criminal proceedings. Rather, continuation thereof would only perpetuate unnecessary litigation between the parties. There is no legal impediment to quashing the FIR in the facts and circumstances of the present case.

11. Accordingly, **FIR No. 0271/2024**, registered at Police Station Rani Bagh, New Delhi, for the offences punishable under Sections 498A/406/34 IPC, along with all consequential proceedings emanating therefrom, is hereby quashed.

12. The present petition, along with all pending application(s), if any, stands disposed of.

13. Copy of this order be communicated to the concerned Trial Court for information and necessary action.

14. The order be uploaded on the website forthwith.

MADHU JAIN, J

AUGUST 10, 2026/JYH/P